

		responses. The time expended in analyzing and annotating objection-only responses is unreasonable and the requested hours for Acosta are reduced by 0.9 hours Further, the request for 9.4 hours for the instant attorneys' fees motion is excessive and reduced by 3.4 hours (0.9 hours for Acosta and 2.5 hours for Urner). The court awards attorney fees of \$15,817.50. Plaintiffs request for a 0.3 multiplier to the lodestar is DENIED. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Plaintiff filed a memorandum of costs, claiming \$1,061.94 in costs, on 5/6/2026. (ROA 35.) Defendant did not file a motion to strike or tax costs. Therefore, costs are awarded in the amount of \$1,061.94. Plaintiff to give notice.
7	Moran vs. General Motors, LLC 30-2024- 01396983-CU- BC-CJC	Motion for Attorney Fees Plaintiff Yanet Moran's motion for attorney fees is DENIED. The court has observed a trend in lemon law cases, nearly all of which settle prior to trial, which is wholly absent from all other civil litigation the court oversees. The lemon law parties wait until the eve of trial, plaintiff files a notice of settlement <i>of entire case</i> without disclosing to the court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with dismissal, later filing a motion for attorney fees on grounds the parties agreed the court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, the chosen course of litigation conduct has no basis in law. "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court" (Cal. Rules of Court, rule 3.1385(a)(1).) "Except as provided in (c) [conditional settlement] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does

	not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed.” (<i>Id.</i>, rule 3.1385(b).) “If the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed.” (<i>Id.</i>, rule 3.1385(c)(1).) “If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire case unless good cause is shown why the case should not be dismissed.” (<i>Id.</i>, rule 3.1385(c)(2).) The use of "must" and "shall" in these provisions establishes the mandatory nature of the court's duty to dismiss after the applicable time period has passed, subject only to the good cause exception. (See <i>Hatlevig v. General Motors LLC</i> (2026) 118 Cal.App.5th 644, 650 [“court entered the order to fulfill the mandatory duty to dismiss settled cases”].) The Judicial Council has adopted for mandatory use Form CM-200, Notice of Settlement of Entire Case (Notice), a form designed to inform the court and parties a settlement has been reached. The Notice states “the entire case has been settled” and requires the signer to state in paragraph 1 whether the settlement is unconditional or conditional. The Notice requires a signature under penalty of perjury from the filer. Due process requires a court to provide notice prior to dismissing a case, including after filing of a Notice. (<i>Lee v. Placer Title Co.</i> (1994) 28 Cal.App.4th 503, 510.) The court’s jurisdiction to enforce a settlement agreement post-dismissal depends on a clear written or oral stipulation of the parties requesting retention of jurisdiction under Code of Civil Procedure section 664.6. Otherwise, the court loses jurisdiction upon dismissal. (See <i>DeSaulles v. Community Hospital of Monterey Peninsula</i> (2016) 62 Cal.4th 1140, 1155 [parties must ask court to retain jurisdiction before dismissal deprives court of jurisdiction].) On 8/25/2025, the eve of trial scheduled for 8/29/2025, plaintiff’s counsel, William Vollbrecht of Consumer Law Experts, PC, filed a Notice stating the parties had reached
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	a conditional settlement of the entire case and representing under penalty of perjury the entire case had been settled and a request for dismissal would be filed no later than 11/24/2025. Other than the Notice, no party provided the court with any details of the settlement, including, e.g., whether it was entered into following acceptance of a Code of Civil Procedure section 998 offer to compromise or whether the parties had agreed to request the court to retain jurisdiction to enforce settlement terms under Code of Civil Procedure section 664.6. In reliance on plaintiff's representation, on 8/25/2025, the court vacated all reporting requirements and ordered the parties to comply with California Rules of Court, rule 3.1385 by filing a dismissal upon completion of settlement terms on or before 11/24/2025. The date of 11/24/2025 came and went with no action. On 12/12/2025, plaintiff filed a memorandum of costs, and on 2/27/2026, plaintiff filed a motion for attorney fees, designating a hearing date for 6/5/2026. Because the court considered the case settled based upon counsel's representation the entire case had settled, on 4/15/2026, the court entered an order dismissing the case and vacating the scheduled motion. Two days later, on 4/17/2026, plaintiff filed a new motion for attorney fees, with a hearing date set for 7/24/2026. In the motion, the court was informed plaintiff had accepted defendant's 998 offer of compromise on 8/19/2025, approximately eight months before the motion was filed. The 998 offer provided, inter alia, (1) defendant agreed to pay plaintiff's attorney fees, expenses, and costs, which "may be determined by the court via noticed motion"; (2) the court would retain jurisdiction to enforce the offer of compromise under Code of Civil Procedure section 664.6; and (3) plaintiff would file a request for dismissal of the entire action with prejudice, within 5 business days of receiving all payments from defendant. Plaintiff never filed a request for dismissal, and the parties never requested the court retain jurisdiction under section 664.6. If plaintiff wished to have a motion for attorney fees heard, it was plaintiff's duty to file a motion and have it heard prior to the date designated in the Notice.
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		Pursuant to its mandatory duty, and the parties having failed to show good cause after notice had been given by the court, the court dismissed the case on 4/15/2026, whereupon the court lost jurisdiction to hear any motion for attorney fees. The court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the court if, indeed, additional law and motion over settlement terms is contemplated, as it was here. Settlement of the "entire case" means just that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 ["A settlement with open material terms is not a 'conditional settlement.' To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms."].) Further, plaintiff "must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6." (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, "Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court's own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6" (<i>Id.</i>) Because the court has lost jurisdiction and the issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the 998 offer, and/or whether some other procedure was viable. The court rules only that the chosen course of action was not. Clerk to give notice.
8	Johnson vs. Smith 30-2025- 01499232-CU- PA-CJC	Motion to Strike Portions of Complaint The motion to strike portions of Plaintiff's complaint filed by defendants Raymond Clark Smith IV and Blake Smith is DENIED.